

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

April 16, 2026

8:30 a.m./1:30 p.m.

10. LANE SQUIRES V. CAMBRIA SQUIRES

24FL1053

This matter is before the court for hearing on the Request for Order (RFO) filed by the Respondent on December 12, 2025, to (1) set child support; (2) set spousal support; (3) award tuition reimbursement as additional spousal support;¹ (4) award Respondent need-based attorney fees in the amount of \$15,000.00; and (5) impose sanctions against Petitioner in the amount of \$5,000.00. On December 22, 2025, the Respondent filed an Income and Expense Declaration (I&E). Two separate proofs of service, both filed December 22, 2025, show that the RFO and I&E were served upon the Petitioner by mail on December 17 and 22, 2025, respectively.

A hearing was originally set for March 12, 2026. However, the matter was continued twice, once upon Respondent's request, and again upon stipulation of the parties. On April 2, 2026, the Petitioner filed (1) a Responsive Declaration; (2) a declaration from his attorney, Amanda Paull, regarding the Respondent's request for attorney fees; (3) a memorandum of points and authorities; and (4) an I&E. Proof of service filed the same day shows that each of these documents was electronically served upon the Respondent on April 1, 2026.

On April 6, 2026, the Respondent filed a supplemental declaration, a copy of which was served upon the Petitioner by mail that same day according to the proof of service, also filed April 6, 2026. Respondent declares that her I&E filed December 12, 2025, is still correct as to her lack of income. (C. Squires Decl., filed Apr. 6, 2026, ¶ 2.)

On April 9, 2026, the Respondent filed an objection to and request to strike portions of the Petitioner's Responsive Declaration. The Respondent also filed a reply declaration. Proof of service filed April 9, 2026 shows that both of these filings were personally served upon the Petitioner's attorney that same day (the court notes, however, that the proof of service does not identify the name of the person at the attorney's office who was personally served).

Pursuant to Evidence Code section 1152,² Respondent objects to the following portions of Petitioner's Declaration in Attachment 10 to his Responsive Declaration: (1) the

¹ Respondent is returning to school to pursue a master's degree in Speech-Language Pathology. The court notes that the Respondent voluntarily agreed to submit to a vocational examination. On April 14, 2026, Petitioner lodged a copy of the vocational evaluation dated April 9, 2026. However, said evaluation was not timely submitted, and therefore, the court does not consider it in ruling on the instant RFO.

² Evidence Code section 1152, subdivision (a) provides in relevant part: "Evidence that a person has, in compromise..., furnished or offered or promised to furnish money... to

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following portion of Paragraph 12: “The following response was received from Cambria: ‘The letter dated August 25, 2025, which purports to be a global settlement offer is hereby rejected. We will not be responding to it. In the future, after the discovery and receipt of documents are received and reviewed, we hope to be in a position to present our own offer of settlement, but it is premature at this point given the circumstances...’”; (2) Paragraph 13 in its entirety; and (3) Paragraph 14 in its entirety. The court sustains Respondent’s objections to these portions of Petitioner’s declaration and strikes them from the record. Respondent also objects to the following exhibits attached to Petitioner’s Responsive Declaration: Exhibits A, C, D, E, and M.

Respondent objects to Exhibit A (photographs of the marital residence) on the grounds of lack of foundation and hearsay. The court sustains the objections and strikes Exhibit A from the record.

Respondent objects to Exhibit C (Custody Xchange Schedule Document) on the grounds of lack of foundation, hearsay, and confidential mediation privilege. The court reserves on these objections because the court presently does not have enough information to make a ruling. For purposes of ruling on the instant RFO, the court has not considered Exhibit C at this time.

Respondent objects to Exhibit D (email from a confidential mediator regarding the parties’ oldest child’s adjustment to the custody schedule) and Exhibit E (the parties’ purported custody agreement) on the grounds of confidential mediation privilege. The court sustains the objections and strikes both Exhibits D and E from the record. The court notes that Exhibit E is not signed, and thus, not a fully executed agreement. Lastly, Respondent objects to Exhibit M (November 15, 2025, email correspondence between counsel) on the grounds that it is incomplete. Respondent’s objection indicates she will include in her reply declaration the complete conversation; indeed, Respondent did include the “Complete Email Chain Between Counsel October 30, 2025, through November 3, 2026.” However, the court will strike Exhibit M, as well as the emails submitted by Respondent in her reply declaration as hearsay.

Child Support and Spousal Support

The parties do not dispute the custody share of their three youngest children – Me.S. (age 13), Ta.S. (age 11), and Ti.S. (age 7) – who are under Respondent’s physical custody approximately 55 percent of the time; and under Petitioner’s physical custody

another who has sustained or will sustain or claims that he or she has sustained or will sustain loss or damage, as well as any conduct or statements made in negotiation thereof, is inadmissible to prove his or her liability for the loss or damage or any part of it.” (Evid. Code, § 1152, subd. (a).)

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approximately 45 percent of the time. The court finds that the parties' oldest child, Ma.S. (age 18), who is a full-time high school student, is under Respondent's physical custody approximately 90 percent of the time; and under Petitioner's physical custody approximately 10 percent of the time.

Having reviewed and considered both parties' proposed XSpouse calculations, the court adopts the Respondent's XSpouse calculation attached to her April 6, 2026, reply. Therefore, the Petitioner is ordered to pay child support to the Respondent in the amount of \$8,790.00, and temporary spousal support to the Respondent in the amount of \$5,292.00. This order is effective January 1, 2026. Payments are due on the first of each month until further order of the court or termination by operation of law.

The court finds this order results in an arrears balance of \$56,328.00 for the months of January through April inclusive. The court is ordering Petitioner to pay Respondent \$7,041.00 per month as and for arrears beginning May 15, 2026. Further payments are due on the 15th of each month until paid in full (approximately eight months). If there is any missed or late payment, the full amount is due and owing.

Tuition Reimbursement

The court denies Respondent's request for tuition reimbursement because the RFO sets forth no legal authority upon which such relief can be granted.

Need-Based Attorney Fees

The court grants Respondent \$15,000.00 as advance on her community property share of the cash assets.

Sanctions

The court reserves on the issue of sanctions until the time of trial.

TENTATIVE RULING #10: THE RESPONDENT'S RFO IS GRANTED IN PART AND DENIED IN PART.

PETITIONER IS ORDERED TO PAY CHILD SUPPORT TO THE RESPONDENT IN THE AMOUNT OF \$8,790.00, AND TEMPORARY GUIDELINE SPOUSAL SUPPORT TO THE RESPONDENT IN THE AMOUNT OF \$5,292.00. THIS ORDER IS EFFECTIVE JANUARY 1, 2026. PAYMENTS ARE DUE ON THE FIRST OF EACH MONTH UNTIL FURTHER ORDER OF THE COURT OR TERMINATION BY OPERATION OF LAW.

THE COURT FINDS THIS ORDER RESULTS IN AN ARREARS BALANCE OF \$56,328.00 FOR THE MONTHS OF JANUARY THROUGH APRIL INCLUSIVE. THE COURT IS ORDERING PETITIONER TO PAY RESPONDENT \$7,041.00 PER MONTH AS AND FOR

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ARREARS BEGINNING MAY 15, 2026. FURTHER PAYMENTS ARE DUE ON THE 15TH OF EACH MONTH UNTIL PAID IN FULL (APPROXIMATELY EIGHT MONTHS). IF THERE IS ANY MISSED OR LATE PAYMENT, THE FULL AMOUNT IS DUE AND OWING.

THE RESPONDENT'S REQUEST FOR TUITION REIMBURSEMENT IS DENIED WITHOUT PREJUDICE.

THE COURT GRANTS THE RESPONDENT \$15,000.00 AS ADVANCE OF HER COMMUNITY PROPERTY SHARE OF CASH ASSETS.

THE COURT RESERVES ON THE ISSUE OF SANCTIONS UNTIL THE TIME OF TRIAL.

THE RESPONDENT'S ATTORNEY IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6275 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.